

Court No. - 3

Case :- WRIT - C No. - 3872 of 2022

Petitioner :- Badri Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sushil Kumar, Mukul Yadav

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri Rajesh Yadav, learned counsel for the respondent no. 4.

This writ petition has been filed praying for the following relief:

"A. Issue a writ order or direction in the nature of certiorari calling for the records of the case and quash the impugned citation dated 8.11.2021 issued by respondent no. 3 against the petitioner (Annexure No. 4 to the writ petition).

B. Issue a writ order or direction in the nature of mandamus directing the respondent no. 4 to take appropriate action regarding proper assessment as per unauthorized use of electricity under Section 126 of the Act and take an action provided under clause 6.8 Uttar Pradesh Electricity Supply Code, 2005."

Learned counsel for the respondent no. 4 states, on instructions, that the petitioner may file his objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within three weeks from today and in the event, such an objection is filed within the stipulated period, it shall be decided by the respondent no. 4 by speaking and reasoned order within next four weeks after affording reasonable opportunity of hearing to the petitioner.

This writ petition is **disposed of** in terms of the statement made by learned counsel for the respondent no. 4 as noted above.

Order Date :- 13.5.2022

A. V. Singh